

Basant Goel Proprietor Of Goel Medicos vs Health Care At Home India Pvt. Ltd on 30 March, 2026

IN THE COURT OF MS. KIRAN BANSAL:
DISTRICT JUDGE (COMMERCIAL COURT-02)
SHAHADARA DISTRICT
KARKARDOOMA COURTS : DELHI

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KIRAN BANSAL
BANSAL Date:
2026.03.30

Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd.
Civil Suit (Comm) No. 44/2023

In the matter of

Sh. Basant Goel
Proprietor of M/s Goel Medicos
8A/460, Durgapuri Extension
Loni Road, Shahdara, Delhi -
110093
Phone No. 011 42801345
Email ID : goelmedicos505@gmail.com

Versus

Health Care at Home India Pvt. Ltd.
Through its Authorized Representative
4th Floor, Punjabi Bhawan,
10, Rouse Avenue, New Delhi - 110002
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Date of Institution	:30.01.2023
Date of final arguments	:24.03.2026
Date of conclusion	:30.03.2026

JUDGMENT

1. The present suit is filed by the plaintiff for recovery of Rs.35,04,400.50/- along with pendente lite and future interest @ 12% per annum.

PLAINT

2. Briefly stated facts of the case are that plaintiff is the sole proprietor of firm, M/s Goel Medicos and the transactions KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:18:32 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.2 of 49 referred to in the present suit pertains to year 2017 - 2018, whom Mrs. Usha Goel i.e. mother of plaintiff was the proprietor of M/s Goel Medicos while plaintiff was the pharmacy incharge of M/s Goel Medicos. Subsequently, Mrs. Usha Goel transferred ownership, assets, all interests and liabilities of M/s Goel Medicos in favour of plaintiff vide gift deed dated 31.07.2020, therefore, Sh. Basant Goel became the Proprietor of M/s Goel Medicos.

2.1 It is submitted that during the period from 31.10.2017 till 06.11.2018 M/s Goel Medicos had business transactions with the defendant and had purchased certain medicinal / pharmaceuticals products from the defendant and at the same time had sold certain medicinal / pharmaceuticals

products to the defendant and in the usual course of its business M/s Goel Medicos maintained account(s) in the name of defendant company in its ledger wherein entries of the invoices as well as payments relating to transactions between the parties were entered/made.

2.2 It is submitted that from 31.10.2017 till 06.11.2018, M/s Goel Medicos has made purchases from the defendant to the tune of Rs.69,55,651/- towards the 6 Invoices, details of which are mentioned in para 4 of the plaint but are not repeated herein for the sake of brevity. It is further submitted that the payments made by M/s Goel Medicos were not made against any specific invoice rather the same were made on account basis, therefore, M/s Goel Medicos has made excess payment of Rs.17,31,957/- and the same is due and payable by the defendant to M/s Goel Medicos and the said excess payment was made during the period 18.10.2018 and 05.11.2018.

2.3 It is submitted that in the month of July and August, 2018 KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:18:39 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.3 of 49 M/s Goel Medicos had sold certain medical / pharmaceuticals products to the defendant to the tune of Rs.17,72,443.50 against which no payment has been received so far and the same is still stands outstanding. The details of the invoices are not repeated herein for the sake of brevity. It is further submitted that defendant became liable to pay a total sum of Rs.35,04,400.50 to the plaintiff.

2.4 It is submitted that defendant has filed 3 complaint cases bearing CC Nos. 3336/2019, 3337/2019 and 2147/2019 under Section 138 of N.I. Act by misusing the blank cheques which were given as security. It is further submitted that the amount covered by the cheques of said complaint case is to the tune of Rs.30,00,000/-, while, the defendant is falsely showing an outstanding amount of Rs.84,43,059/-. It is further submitted that the defendant's own ledger account clearly shows an outstanding amount of Rs.35,04,400.50/- towards the plaintiff. 2.5 It is submitted that prior to filing of present suit by plaintiff, a suit for recovery bearing CS (Comm.) No.256/20 was filed by the defendant against M/s Goel Medicos and subsequently, a counter claim bearing CS (Comm.) No. 332/20 was also filed by Mrs. Usha Goel, the then Proprietor of M/s Goel Medicos and both the cases were disposed off as withdrawn with liberty to file afresh. Plaintiff has complied the statutory provision of Section 12A of Commercial Courts Act and a Non Starter Report dated 19.03.2021 was issued as defendant did not participated in the process of Pre Institution Mediation. 2.6 It is submitted that the transactions between the parties took place in the office of M/s Goel Medicos which is located within the territorial jurisdiction of this court and as such the cause of action has substantially arisen within the territorial KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:18:48 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.4 of 49 jurisdiction of this court. Further, it is submitted that for the purpose of court fee and jurisdiction, the present suit is valued at Rs.35,04,400.50/-. Plaint is accompanied with statement of truth and affidavit.

WRITTEN STATEMENT

3. Summons were served upon the defendant and the WS was filed wherein it is stated that the present plaint filed is misconceived and misdirected and has been filed on presumptions/allegations

and in view to exaggerate true factum of events in order to extort illegitimate sums of money from the defendant. It is submitted that no sufficient cause has been shown by plaintiff for invoking the territorial jurisdiction, as the address of the defendant is mentioned as SH No.1, B-96, Ground Floor, New Ashok Nagar, Delhi - 110096 in plaintiff's own invoice which comes within the jurisdiction of courts of East Delhi. It is submitted that it is an admitted position of law that the suit cannot be instituted in the jurisdiction where the plaintiff resides or carries on its business and a suit should be instituted in a court within the local limits of whose jurisdiction the defendants actually and voluntarily carries on business. It is submitted that going by alleged invoices that the plaintiff has placed on record, the suit should have been instituted before the courts of East Delhi, as the same would have territorial jurisdiction to try and entertain the present suit. Further, it is submitted that the plaintiff has wrongly instituted the present suit before this court within the jurisdiction of Shahdara District as per its own convenience. 3.1 It is submitted that plaintiff has failed to bring on record an iota of evidence to substantiate the averments of alleged excess payment of Rs.17,31,957/- and has frivolously KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:18:56 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.5 of 49 filed the present suit seeking alleged recovery of Rs.35,04,400.50. It is submitted that on contrary, it is the plaintiff who has to pay an outstanding amount of Rs.84,43,959.24/- to the defendant and the instant suit has only been filed by the plaintiff to evade its responsibility to pay the legally enforceable dues. It is submitted that as admitted by plaintiff he became the sole proprietor of the firm M/s Goel Medicos w.e.f. 31.07.2020 vide gift deed dated 31.07.2020, however, the plaintiff Mr. Basant Goel with an intent to defraud the defendant company issued multiple cheques in favour of defendant for discharging its liability during the financial year 2017 - 2019 under his own signature as proprietor of M/s Goel Medicos. It is further submitted that the said cheques in question issued by plaintiff have returned dishonored which clearly shows the conduct of plaintiff, that he acted in collusion with Mrs. Usha Goel i.e. erstwhile proprietor of M/s Goel Medicos with an intention to deprive the defendant of its legally entitled dues existing against the plaintiff.

3.2 It is submitted that few cheques issued by plaintiff to the defendant towards legitimate dues are subject matter of litigation between the defendant and plaintiff under Section 138 N.I. Act before Ld. Patiala House Courts. It is further submitted that additionally the plaintiff, in connivance with Mrs. Usha Goel has defrauded GST authorities. It is submitted that plaintiff before Ld. MM under N.I. Act have placed on record GST Registration Certificate of proprietorship concern M/s Goel Medicos issued in 2017 whereby it showed erstwhile proprietor Mrs. Usha Goel which plaintiff has not placed on record in instant suit proceedings. Further, it is submitted that GST number of a firm changes if the proprietor of the same is changed, thus, KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:19:01 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.6 of 49 while proprietor of proprietorship concern M/s Goel Medicos has changed from Mrs. Usha Goel to Mr. Basant Goel, the GST number of same would also have been changed, however, as per GST Registration Certificate placed on record by plaintiff, Mr. Basant Goel is the proprietor of proprietorship concern M/s Goel Medicos and the date of validity of GST Registration Certificate is from 23.05.2019.

3.3 It is submitted that defendant does not maintain hard copy records of invoices as issued by it to M/s Goel Medicos towards the goods supplied by the defendant to M/s Goel Medicos. Further, it is submitted that owing to business relations between defendant and M/s Goel Medicos, the defendant company did not take any receiving from M/s Goel Medicos towards the goods supplied and delivered by it to M/s Goel Medicos.

3.4. It has also been submitted by the defendant that during October 2017 to November 2018, M/s Goel Medicos has telephonically placed certain purchase orders with the defendant. Thus, in pursuance of the same, the goods were delivered and the defendant had raised invoices in this regard, details of which has been provided in the WS and same has not been repeated herein for sake of brevity. It is also averred that the defendant has also duly paid the appropriate GST on the invoices. 3.5. It is submitted by the defendant that in order to discharge his liability, the plaintiff issued three cheques of Rs. Ten Lacs each which were dishonoured with remark 'Funds Insufficient'. It is further submitted that an amount of Rs. 84,43,059.24/- is still outstanding and payable by M/s Goel Medicos. It is averred that the defendant had made a total sale of Rs. 1,89,12,187/- to M/s Goel Medicos during the entire course KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:19:09 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.7 of 49 of its business with M/s Goel Medicos and after due adjustment of goods purchased by the defendant, a total of Rs. 84,43,059.24 is still outstanding and payable to the defendant.

Remaining material averments has been denied by the defendant and prayer has been made for dismissal of the suit with cost. Affidavit of the defendant, statement of truth has been filed along with WS.

REPLICATION

4. Plaintiff has filed replication to the WS of defendant wherein plaintiff denied each and every allegation and averment made by defendant in the written statement. Further, all the averments made in the plaint are reiterated and reaffirmed and the averments made in the WS are denied.

ADMISSION/DENIAL

5. During admission/denial, the defendant in his affidavit of admission/denial of documents has admitted the following documents of plaintiff:-

- i. Account ledger filed by defendant company for the period from 01.04.2017 to 31.03.2019 in CC No. 3337/2019 as Ex. P1;
- ii. FIR bearing no. 0412/2019 dated 30.08.2019 registered at PS Ambedkar Nagar on the complaint of Sukhvinder Singh as Ex. P2;
- iii. Printout of order dated 19.10.2020 whereby the counter claim filed by the plaintiff was withdrawn as Ex. P3; iv. Non Starter Report dated 19.03.2021 as Ex. P4.

5.1 On the other hand, the plaintiff in his affidavit of KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:14 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.8 of 49 admission/denial of documents has admitted the following documents of defendant i.e. i. Copy of cheques bearing no. 019037, 019034, 019035 issued by the plaintiff to the defendant along with return memos as Ex. D1 (however, correctness of its contents are denied and it is stated that the cheques are security cheques);

ii. Order passed in case title as Health Care at Home India Pvt. Ltd. Vs. Goel Medicos & Anr. CS (Comm) 256/2020 by the Hon'ble Karkardooma District Courts as D2; iii. Order passed in case title as Health Care at Home India Pvt. Ltd. Vs. Sai Medicine & Surgical & Ors. CS (Comm) 41/2019 in the Hon'ble Karkardooma Court as D3; iv. GST Registration Certificate issued on 19.09.2017 by the Government of India in favour of Mrs. Usha Goel as proprietor of M/s. Goel Medicos as filed in Ct. Case No. 3336/2019 before the Ld. Metropolitan Magistrate as D4.

ISSUES FRAMED

6. The following issues were framed for consideration vide order dated 05.08.2024:

- i. Whether the plaintiff is not entitled for any money decree in view of the defendant's averment that defendant had made a sale of the goods worth Rs.1,89,12,187/- to the plaintiff as stated in para 43 of the preliminary submissions? OPD ii. Whether the plaintiff is entitled for money decree? If so, to what amount? OPP.
- iii. Whether the plaintiff is entitled to any interest? If so, at what rate and for which period? OPP.

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:19 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.9 of 49 iv. Relief.

PLAINTIFF'S EVIDENCE

7. In support of its case, plaintiff has examined himself as PW-1 and tendered his evidence by way of affidavit on 10.09.2024 Ex.PW1/A and has relied upon the following documents:

- Gift Deed dated 31.07.2020 as Ex.PW1/1; • True printout of GST certificate of M/s Goel Medicos as Ex.PW1/2;
- True printouts of statement of accounts/ledger maintained by plaintiff in the name of defendant as Ex.PW1/3 (colly); • Five (05) Sales invoices raised by M/s Goel Medicos on the defendant as Ex.PW1/4(colly);
- FIR bearing no.0412/2009 as Ex.P2;

- Order dated 19.10.2020 passed in CS(Comm) No.332/20 as Ex.P3;
- Non-starter report dated 19.03.2021 as Ex.P4; • Affidavit under Order XI Rule 6 CPC r/w Section 65B of the Indian Evidence Act [w.r.t. Ex.PW1/2, PW1/3 (colly), Ex.PW1/4(colly)] as Ex.PW1/5.

He was cross examined at length by counsel for defendant. Thereafter, PE was closed on his statement.

DEFENDANT'S EVIDENCE

8. In rebuttal, Sh. Sukhwinder Singh, AR of defendant has been examined as DW-1 and tendered his evidence by way of affidavit on 17.01.2025 Ex.DW1/A and has relied upon the following documents:

- Copy of Board Resolution dated 22.01.2019 of defendant KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:25 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.10 of 49 which as Ex.DW1/1.
- Printout of pending and outstanding invoices raised by defendant during the time period 31.08.2018 to 06.11.2018 as Ex.DW1/2 (A1) to Ex.DW1/2 (A10);
- Printout of the Ledger Account maintained by defendant company qua the plaintiff as Ex.DW1/3; • Affidavit under Section 65B of Indian Evidence Act as Ex.DW1/4.

He also relied upon the following documents which are already exhibited i.e.

(a) Copy of cheque bearing no. 019037, 019034 and 019035 along with respective return memos dated 19.12.2018 and 23.01.2019 as Ex. D1,

(b) Printout of order passed in CS (Comm.) No.256/2020 as Ex. D2 (colly),

(c) Printout of order passed in CS (Comm.) No.41/2019 as Ex.

D3 (colly).

He was cross examined at length by ld. counsel for plaintiff.

8.1 A summoned witness Sh. Dinesh Kumar, Senior Assistant, GST Department, ITO Vyapar Bhawan, New Delhi was examined as DW-2 who has brought the summoned record of plaintiff i.e. GSTR-2B for the financial year 2017-18 and 2018-19 as Ex.DW2/1, GSTR-9 for the financial year 2017-18 as Ex.DW2/2 and Comparison sheet of input details under GSTR-3B for the financial year 2017-18 and 2018-19 also filed as Ex.DW2/3 and also filed authorization letter along with certificate

u/s 65B of the Indian Evidence Act as Ex.DW2/4. Thereafter, DE was closed on the statement of defendant.

KIRAN by KIRAN BANSAL BANSAL 16:19:29 Date: 2026.03.30 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.11 of 49 JUDGEMENTS RELIED UPON AND ITS DISCUSSION

9. The plaintiff has relied upon the following cases in support of his contentions:

Madholal Sindhu vs Asian Assurance Co. Ltd and Ors 1945 SCC OnLine Bom 44
Narbada Devi Gupta vs Birendra Kumar Jaiswal and Anr.

(2003) 8 SCC 745 Man Kaur (Dead) by LRs vs Hartar Singh Sangha (2010)

10 SCC 512 Government of Goa Through the Chief Secretary vs Maria Julieta D'Souza (D) and Ors
2024 INSC 88 Ashok Kumar and Anr vs Shiv Shankar 2023 SCC Online Del 3522 Oscar Tour and Travels vs UOI 2024 SCC Online Del On the other hand, the defendant has relied upon following judgements in support of its contention:

Kulwinder Singh vs Paramjit Singh RSA 2557 of 2019 de-

cided by P&H HC on 14.09.2023 Rangammal vs Kuppuswami and Anr. (2011) 12 SCC 220 Dogiparthi Venkata Satish and Anr vs Pilla Durga Prasad & Ors SLP (civil) 25938 of 2023 decided by Hon'ble SC on 26.08.2025 Gian Chand & Bros vs Rattan Lal (2013) 2 SCC 606 Anjum Nath vs British Airways 2015 SCC OnLine Del 14373 Jainsons Light Pvt Ltd vs Ashraf 2024 SCC OnLine Del S P Chengalvaraya Naidu vs Jagannath (1994) 1 SCC 1 KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:35 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.12 of 49 Ashok Transport Agency vs Awadhesh Kumar (1998) 5 SCC 567

10. Thus, it will be pertinent to discuss the cases relied upon by the parties. It is as follows:

Madholal Sindhu vs Asian Assurance Co. Ltd and Ors : In this case, the issue was not merely whether the contents of the documents not just being written by a person but also whether the contents of the documents were true. Thus, it was observed by the Hon'ble Bom HC that it could have been proved only by the person who was acquainted with the facts and has personal knowledge of the same and not by the person who had no personal knowledge about the contents of the documents.

Narbada Devi Gupta vs Birendra Kumar Jaiswal: The plaintiff has relied upon this case to buttress his submission that the mere production of the documents and marking it as Exhibits is not proof of the documents and the documents have to be

proved by admissible evidence. However, the Hon'ble SC has held that when the documents are admitted and signatures are also admitted, then the situation is different and it does not require any separate evidence to prove the documents. The relevant part of the judgement, as relied upon by the plaintiff, is as follows:

"16. Reliance is heavily placed on behalf of the appellant on the case of Ranji Dayawala & Sons (P) Ltd. The legal position is not in dispute that mere production and marking of a documents as exhibit by the court cannot be held to be a due proof of its contents. Its execution has to be Digitally signed KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:40 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.13 of 49 proved by admissible evidence, that is, by the 'evidence of those persons who can vouch safe for the truth if the facts in issue'. The situation is, however, different where the documents are produced, they are admitted by the opposite party, signatures on them are also admitted and they are marked thereafter as exhibits by the court."

Man Kaur (dead) by LRs vs Hartar Singh Sangha: In this case, the appellant was the defendant in a suit for specific performance of an agreement of sale filed by the respondent- plaintiff. In this case, an agreement to sell was executed between the defendant, represented by her husband and attorney holder Kartar Singh, and the plaintiff, represented by his attorney holder Paramjit Singh. However, later disputes arose and the plaintiff filed a suit for specific performance of the said agreement of sale against the appellant. The suit was decreed by the trial court and the same was affirmed by the appellate court as well. Being aggrieved by the order(s), the appellant filed the present appeal on the ground that plaintiff did not sign the agreement of sale nor gave evidence and even the person who was attorney holder of the plaintiff was not examined. However, who was examined was second attorney holder and he was not personally aware of the transaction. There were other grounds, in the said case, but the plaintiff has confined his submission to the aspect of deposition by person not having personal knowledge of the facts of the case. The Hon'ble SC has held that testimony of the witness who was not aware of the facts can not be relied upon to prove the case of the plaintiff. The Hon'ble SC has sum-

KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:19:46 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.14 of 49 marized the principles regarding as to who can give evidence in matters relating to the personal knowledge in para 18 of the judgement. However, the same is not re-produced here for sake of brevity. Thus, the Hon'ble SC allowed the appeal and set aside the decree on the ground, inter alia, that suit can not be decreed on the basis of the testimony of the witness who has no personal knowledge of the transaction.

Government of Goa, through the chief secretary vs Maria Julieta D'Souza (D) & Ors: In the said case, the appellant had filed the appeal against the judgement of Hon'ble HC which dismissed the trial court order dismissing the suit of the respondent. The Hon'ble SC while upholding the judgement of Hon'ble HC had distinguished between the concept of burden of proof and standard of proof and has held that both the concepts are different and this distinction is well known to the civil

and criminal law. The. Ld. coun- sel for the plaintiff relies upon the observation of the Hon'ble SC whereby it was observed that the sufficiency of evidence is to be seen in context of standard of proof, which in civil cases is by preponderance of probability. The counsel for the plaintiff has only relied upon this sub- mission.

11. Now discussing the cases relied upon by the defendant in support of its contentions.

Rangammal vs Kuppuswami and Another: The said case pertains to the partition suit filed by the plaintiff against the defendant. In the said case, the plaintiff had set up a case that vide sale deed, half share of the dispute property which on partition had fallen into the share of the appel-

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:19:51 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.15 of 49 lants father was sold by the guardian of the appellant to discharge the debt of the deceased mother of the appellant. Thereafter it was sold vide sale deed dated 24.02.1951 to plaintiff's father and guardian himself. The Hon'ble SC held that the burden to prove that the property was sold in legal necessity should be upon the plaintiff and held that trial court's decision and high court's decision to shift the burden of proof on the appellant- defendant was erroneous. The ld. counsel for the defendant also relies on the obser- vation of the Hon'ble SC qua the burden of proof as per which the burden of proving a fact lies upon the person who asserts it and until such burden is discharged, the other party is not required to be called upon to prove his case.

Gian Chand and Brothers vs Rattan Lal alias Rattan Singh :

In this case, it was observed by the Hon'ble SC that the person who asserts a fact is required to affirmatively estab- lish it and not on the party who denies it. Moreover, the said case pertains to the recovery of amount due upon the defendant. It was observed by the Hon'ble SC that the placing of the burden of the proof on the plaintiff that the signature pertains to the defendant was misconceived as the primary burden of proving a fact is on the person who affirms it and not on the other party.

Anjum Nath vs British Airways: The plaintiff has filed said suit seeking a decree of declaration that plaintiff is entitled to be paid as per the Early Retirement Scheme as applica- ble in India on 08.07.2002. Moreover, the decree is also sought for Rs. 55 lakhs in favour of the plaintiff and against the defendant. In this case, also the defendant seeks KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:19:58 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.16 of 49 to rely on the observation of the Hon'ble High Court at Delhi qua burden of proof i.e. burden of proof lies on a person who affirms it and not on person who denies it. However, the facts of the said case are different from the facts of the present case, therefore, this case is not applica- ble in the facts of the present case.

Jainsons Lights (Pvt) Ltd vs Ashraf: In the said case, the trial court had dismissed the suit of the plaintiff as the plaintiff could not prove its own case. The plaintiff filed the appeal challenging the order of the trial court and contended that as the defendant did not lead evidence so his case must be deemed to have been proved. However, this contention of the plaintiff was rejected by Hon'ble HC as the HC held that the burden of proof of proving the case was upon the plaintiff and merely because the defendant did not lead evidence is not sufficient for the plaintiff to conclude that the plaintiff has proved his case.

S P Chengalvaraya Naidu vs Jagannath: In this case, the Hon'ble SC has held that one whose case is based upon falsehood can not be allowed to approach court for seeking relief as frauds and justice can not dwell together. In this case, the predecessor in interest of plaintiff had filed an application for final decree of the suit property. The facts were such that plaintiff had purchased a property from the court auction and later relinquished all of his interest to a third party. However, the judgement debtor paid total decretal amount to third party and therefore, plaintiff has no right to that property. However, the plaintiff filed suit for partition of property without disclosing the fact of said release deed. The court held that the preliminary decree KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:04 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.17 of 49 was obtained through fraud and therefore, the court dismissed the application for final decree.

Kulwinder Singh vs Paramjit Singh: In the said case, plaintiff/appellant had filed the appeal challenging the concurrent findings of the dismissal of the suit. In the plaint, it was stated that the plaintiff is the owner in possession of the suit property and it was his ancestral property which was being used for storing agricultural implements and upon being interfered by the defendant and getting apprehended, the plaintiff prayed for a decree of injunction. However, in the replication filed by the plaintiff, an U turn was taken and it was pleaded that property falls within Lal Lakir in village and is just on the borderline of Lal Lakir and bears a khasra number and thus, on the basis of the regular use since the time of his ancestors, plaintiff pleaded that he be treated as owner of the suit property.

Thus, the trial court held that due to confused and contradictory pleadings of the plaintiff, the plaintiff could not prove the location of the suit property and thus, the suit was dismissed. Thereafter, the first appeal was also dismissed by the appellate court and taking into consideration the pleadings of the plaintiff, the Hon'ble HC also dismissed the said appeal.

12. The court has heard ld. counsel for the plaintiff as well as ld. counsel for the defendant and have also gone through the records of the case and the written submissions filed.

ISSUE-WISE FINDINGS Since both the issues no. I and II are inter-related and would require appreciation of same evidences, therefore, both the issues KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:10 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.18 of 49 are taken up together.

ISSUE NO. I. Whether the plaintiff is not entitled for any money decree in view of the defendant's averment that defendant had made a sale of the goods worth Rs.1,89,12,187/- to the plaintiff as stated in para 43 of the preliminary submissions? OPD AND ISSUE NO. II. Whether the plaintiff is entitled for money decree? If so, to what amount? OPP.

13. The present suit is commercial in nature and squarely falls within the purview of Section 2 (1) (C) of Commercial Courts Act. Moreover, the plaintiff has also complied with Pre- Institution Mediation and Settlement as Non- Starter Report dated 19.03.2021 i.e. Ex. P4 has been issued with reason that Respondent does not want to participate in the process of Pre-Institution Mediation.

14. As far as limitation is concerned, the transaction in issue pertains to the period of 2017-2018. As per ledger (Ex. PW 1/3), the last invoice raised by the plaintiff is of 14.08.2018 (Ex. PW 1/4) and last payment made by the plaintiff is on 05.11.2018 as per ledger Ex. PW 1/3 as well as ledger filed by defendant Ex. DW 1/3. The period of limitation of 3 years would have expired on 14.08.2021. However, it is pertinent to mention here that the period from 15.03.2020 to 28.02.2022 is liable to be excluded from computing the period of limitation in view of judgement of Hon'ble SC in case of IN RE: COGNIZANCE FOR EXTENSION OF LIMITATION SMW (C) no. 3 of 2020 decided on 10.01.2022. Thus, from 14.08.2018 till 14.03.2020 a period of 1 year 7 months would have been consumed and a period of 1 KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:20:16 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.19 of 49 year 5 months were remaining. This period of 1 year 5 months would commence from 01.03.2022 and applying this period, the limitation would have expired on 01.08.2023. Moreover, the plaintiff has also complied with Pre-Institution Mediation and therefore, period consumed in complying it i.e. from 12.02.2021 to 19.03.2021 is also liable to be excluded.

Thus, the present suit being filed on 30.01.2023 is filed within period of limitation.

15. As far as the territorial jurisdiction is concerned, it is contended by the plaintiff that all the transaction took place at the office of M/s Goel Medicos which is located within the territorial jurisdiction of this court and therefore, cause of action has arisen within the territorial jurisdiction of this court and thus, the present court has territorial jurisdiction to try the suit.

16. The law on the issue of territorial jurisdiction is well settled. The plaintiff can file the present suit as per section 20 CPC where the defendant resides, work for gain or carry out business or where the cause of action arises.

17. However, the Hon'ble Delhi HC has in the case of Satyapal Vs. Slick Auto Accessories Pvt. Ltd. & Ors., 2014 SCC Online Del 998 has held that "Since the trial court has written, in my opinion, a very thorough and an excellent judgment, I would like to reproduce the relevant paras of the judgment of the trial court instead of using my words. The relevant paras of the trial court are 19 to 25 and the same read as under:

"ISSUE NO. 1:

"19. The question to be answered is as to whether this court has no territorial jurisdiction to try and entertain the present suit. The onus to prove this issue was upon the defendant.

20. The defendants have contended that the office/factory of the defendants is situated in Bhiwadi, District-Alwar, Rajasthan and the delivery of the goods was also made at Bhawadi, District-Alwar, Rajasthan at the office/factory of KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:20 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.20 of 49 the defendants and therefore no part of the cause of action arose within the jurisdiction of this court. DW1 has deposed on these lines.

21. There is no doubt the material was supplied by the plaintiff to the defendants at Bhiwadi, District-Alwar, Rajasthan. The same is clear from the invoices Ex. PW1/A and Ex. PW1/B. However even if the material was delivered at Bhiwadi, District-Alwar, Rajasthan it is clear that the material was supplied from the office/factory of the plaintiff situated at Jwala Nagar, Shahdara, Delhi-32 which falls within the jurisdiction of this court.

22. It is a well established principle of law that where, under a contract no place of payment is specified, the debtor must seek his creditor and therefore a suit for recovery is maintainable at the place where the creditor resides or works for gain, because a part of the cause of action arises at that place also with the contemplation of section 20 (c) of the Code of Civil Procedure. Reference may be made to the judgments titled as "State of Punjab V. A. K. Raha" reported as AIR 1964 CALCUTTA 418 (DB), "Jose Paul v. Jose" reported as AIR 2002 KERALA 397 (DB), "Rajasthan State Electricity Board V. M/s Dayal Wood Works" reported as AIR 1998 ANDHRA PRADESH 381, "Munnisa Begum V. Noore Mohd."

Reported as AIR 1965 ANDHRA PRADESH 231 and "State of U.P.v. Raja Ram" reported as AIR 1966 ALLAHABAD 159.

23. In the judgment titled as "State of Punjab v. A. K. Raha" reported as AIR 1964 CALCUTTA 418 (DB) it was clearly held:

".....The general rule is that where no place of payment is specified in the contract either expressly or impliedly, the debtor must seek the creditor, see *The Eider* (1893) P 119 at p. 136, *Drexel v. Drexel*. (1916) 1 Ch 251 at p. 261, *North Bengal, Das Brothers Zemindary Co. Ltd V. Surendera Nath Das*, ILR (1957) 2 Cal 8. The obligation to pay the debt involves the obligation to find the creditor and to pay him at the place where he is when the money is payable. The application of the general rule is not excluded because the amount of debt is disputed...."

24. In the judgment titled as Sreenivasa Pulvarising vs Jal Glass & Chemicals pvt. Ltd. reported as AIR 1985 Cal 74 it was also held:

".....In a contract of the nature now under consideration performance of the contract consists not only of delivery of the goods but also of payment of the price. Therefore, cause of action for a suit on breach of such a contract would arise not only where the goods were to be delivered but also where the price would be payable on such delivery....."

It was further held:

".....9. Therefore, the law continues to remain the same and, in a suit, arising out of a contract, a part of the cause KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:26 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.21 of 49 of action arises at the place where in performance of the contract any money to which the suit relates in payable...."

Adverting to the facts of the present case office/factory of the Plaintiff is situated at Jwala Nagar, Shahdara, Delhi-32. No place of payment has been specified in the contract/bills/invoices. The defendants are liable to make the payment for the goods supplied to them. No application was made by the defendants to the plaintiffs for fixing a place of payment and Sec. 49 of the Indian Contract Act cannot apply to the facts of the case. Therefore, the payment was to be made at the office of the plaintiff. Further the purchase order was placed at Jwala Nagar, Shahdara, Delhi-32 and the goods were supplied from Jwala nagar, Shahdara, Delhi-32 Therefore a part of the cause of action definitely arises at Jawala Nagar, Shahdara, Delhi-32. Hence the present suit for recovery of the sale price can be filed before this court as the office of the plaintiff is situated within the territorial limits of the jurisdiction of the court.

25. I therefore hold that this court has the territorial jurisdiction to try and entertain the present suit. This issue is therefore decided in favour of the plaintiff and against the defendants."

(underlining added)

6. I completely agree with the conclusion of the trial court because it is settled law that the debtor has to seek the creditor and since no place of payment was agreed upon, payment would have been made to the seller/appellant who is residing and working for gain at New Delhi. Trial court has also rightly relied upon Section 49 of the Indian Contract Act, 1872 that it was upon the respondent no.1/defendant no. 1 to fix the place of payment and which has not been done, and therefore payment would have been made by the debtor to the creditor at the place of the creditor/plaintiff/appellant."

18. In the present case, there is no proof that any place of payment was agreed between the parties. Thus, on the basis of the principle of 'Debtor seeks creditor', the present court has territorial

jurisdiction to try the present suit. Moreover, the defendant has produced the cheques issued by the plaintiff earlier to instituting of the present suit (Ex. D1) which reveals that the bank account of the plaintiff is maintained at ICICI Bank, Located at Durga Puri Branch, B-10, West Jyoti Nagar, Shahdara, Delhi-110054. Thus, the bank account is also located within the KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:31 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.22 of 49 territorial jurisdiction of this court. Therefore, the present court has territorial jurisdiction to try the issue.

19. As per the WS of the defendant, the area of New Ashok Nagar falls within the jurisdiction of East district and therefore, the courts at Shahdara district do not have territorial jurisdiction to try and decide the present suit. However, the counsel is probably stating this fact on the basis of the police station, New Ashok Nagar being in East district. However, as per the Civil/Revenue District of Shahdara, the area of New Ashok Nagar falls within the jurisdiction of Shahdara district. The goods were thus, delivered to the defendant within the territorial jurisdiction of the present Court.

20. Perusal of the invoices Ex.DW1/2 (point A1 to A10) reveals that the invoices raised by the defendant were raised at Patparganj, New Delhi regarding the alleged goods being supplied by the defendant to the plaintiff. The Patparganj Industrial Area also falls within the territorial jurisdiction of Shahdara district and thus, the present Court has territorial jurisdiction to try and decide the present suit.

21. The next arguments on behalf of the defendant is that the M/s Goel Medicos being a proprietorship firm having no any separate legal liability/entity cannot be said to gift/ transfer the proprietorship concern itself. In this regard, the defendant has relied upon judgements of Hon'ble SC, as already discussed above to contend that the proprietorship has no separate legal identity from that of the proprietor and thus, Smt. Usha Goel cannot transfer the proprietorship concern. In this regard, the defendant has relied upon the judgement of Hon'ble SC in KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:37 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.23 of 49 Dogiparthi Venkata Satish vs Pilla Durga Prasad (Supra) and Ashok Transport Agency vs Awadhesh Kumar (Supra).

In Dogiparthi (Supra), the plaintiff had filed suit for eviction against M/s Aditya Motors and other entities. Later an amendment application was filed which sought to delete the name of the proprietorship firm and replace it by name of the proprietor. The same was allowed and was not challenged, thus, it became final. However, the defendant then file an application under Order VII Rule 11 CPC seeking rejection of plaint claiming that the cause of action was stated to be against M/s Aditya Motors and not against the proprietor, Pilla Durga Prasad. The trial court rejected the application; however, the Hon'ble HC set aside the order of trial court. Therefore, the plaintiff approached the Hon'ble SC challenging the order of Hon'ble HC. It was held by the Hon'ble SC that the proprietorship firm has no separate legal entity than that of the proprietor and whether the proprietorship concern is sued in its name or through its proprietor representing the firm is one and the same thing. Therefore, Hon'ble SC set aside the order of the Hon'ble HC and upheld the order of trial court.

In Ashok Transport Agency (Supra), the respondent had filed an eviction petition against the proprietorship firm, proprietor of the firm and against the manager of the firm. The proprietor of the firm had died prior to the date of institution of the suit and none has appeared on behalf of the defendant during the proceedings, therefore, an ex-parte decree was passed against the defendant. In the execution proceedings, it was submitted that the proprietor had died and therefore the decree is a nullity. The objection was allowed by the trial court, however, in the revision petition before the Hon'ble HC, it was set aside. Therefore, the appellant had KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:42 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.24 of 49 filed the present appeal before the Hon'ble SC. The Hon'ble SC set aside the order of Hon'ble HC and held that any claim against the proprietorship concern can be filed against the proprietor only and not against anyone else and since the proprietor had died before the institution of the suit, the said concern was not in existence and only the LRs of the proprietor could be sued and thus, it was held that the decree was nullity and could not be executed.

22. On the other hand, the plaintiff has relied upon Ashok Kumar vs Shiv Shankar (Supra) and Oscar Tours and Travels vs Union of India (Supra) to submit that the proprietorship firm can transfer its assets, liabilities etc. to another person. In the case of Ashok Kumar vs Shiv Shanker (Supra) the trial court had dismissed the application of the defendant under Order VII Rule 11 CPC seeking rejection of plaint. Being aggrieved by it, the defendant filed the said petition before, Hon'ble HC. In this case, the proprietor of a firm transferred his rights and goodwill alongwith assets in proprietorship firm to the plaintiff through a document executed on 12.12.2013 and also handed over other movable assets. However, this was further transferred to Sh. Gulshan Kumar, whereby the plaintiff agreed to hand over the business and assets to him on 01.04.2017. When the plaintiff reached the premises to hand over the asset, the possession could not be handover because of the defendant(s) and the plaintiff had filed the said suit seeking recovery and injunction etc. The defendant had contended that the basis of the suit is the agreement whereby the Mr. Ashok Kumar Soni transferred the goods of the proprietorship firm to the plaintiff and since, there is no distinction between the proprietorship firm and proprietor, so sale KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:47 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.25 of 49 and purchase of the proprietorship firm or its goodwill, assets and liabilities does not arise.

In this regard, the Hon'ble HC has observed that there is no law which bars the selling/transfer of the business conducted by a sole proprietorship firm. Rather, the Hon'ble HC held that law permits sole proprietorship firm to be transferred by the owner and thus, Hon'ble HC rejected the contention of the defendant and upheld the order of trial court. Thus, the ld. counsel for the plaintiff relies upon the said observation of the Hon'ble HC.

In the case of Oscar Tours and Travels (Supra), the father of the petitioner was engaged in providing tours for Haj. However, he died and the proprietorship firm was taken over by the son-petitioner. Thereafter, the government introduced new Haj Policy and thereunder, a requirement of prior experience of the organizers was required to be considered. The petitioner contended that the firm had prior experience in conducting the tours to the Haj. Thus, the issue in this case was whether the

experience of a sole proprietor during the course of business was transferable to a different proprietor concern. The Hon'ble HC observed that the Assets and liabilities of a proprietorship concern are transferable after death of the erstwhile proprietor, however, the Hon'ble Delhi HC has held that the experience garnered by sole proprietor of a firm is not transferable to the other person. Thus, the Hon'ble HC dismissed the petition.

Thus, to decide this contention, it would be pertinent to refer to some relevant clauses of the gift deed dated 31.07.2020 Ex. PW1/1, which are as follows:

- "1. That the Donor has not been able to run the business KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:20:52 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.26 of 49 due to lack of time and in consideration of her natural love and affection for the donee, the donor hereby gift her proprietorship business i.e. M/s Goel Medicos to the donee alongwith its all the assets, liabilities, statutory registrations, goodwill, agencies and all other movable assets including transfer of all the personnel as a going concern.
2. That the donee shall pay, satisfy, discharge, perform, undertake and fulfill all obligations appertaining to the Donor and shall adopt perform and fulfill all such contracts and engagements now binding on the donee.
4. That the proposed gift will not affect the lenders/ creditors of the Donor and the interest of each of them has been fully protected, the donee will pay the debts and liabilities of the Donor as and when they fall due.
5. That all the awarded tenders, contracts, deeds, bonds, agreements and other instruments of whatsoever kind or nature relating to the Donor shall continue to be in full force and effect against or in favour of the donee and may be enforced as fully and effectively as if instead of Donor the donee had been a party thereto.
6. The business will be operated in the same manner and with same name except, that, henceforth it will become a proprietorship concern of the Donee.
8. That the Donee has accepted the gift of the said business and taken over the ownership for the aforesaid business M/s Goel Medicos from the Donor."

23. Perusal of the record reveals that the defendant has filed GST registration of the firm of Smt. Usha Goel bearing no. 07AEGPG1300M1ZV which is Ex. D4 as per which the date of registration is 19.09.2017. On the other hand, the plaintiff has filed the GST registration certificate bearing no. 07AFRPG4776M1ZO which is Ex. PW1/2 as per which date of registration is 14.08.2020 and name of proprietor is Sh. Basant Goel. Thus, from the GST registration no. of both the firms, it is clear that the registration number of both the firms are different and therefore, it can not be said that both the proprietorship concerns are same. Merely because the name of the KIRAN Digitally signed by

KIRAN BANSAL BANSAL 16:20:57 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.27 of 49 proprietorship concerns are same, it can not be said that the proprietorship concerns are same. The proprietorship concerns are two different entities.

24. Now dealing with the contention that the proprietorship concern can not be transferred as it has no distinct legal identity. It is a settled law that the proprietorship concern has no separate legal identity from the identity of the proprietor. However, at the same time, it is also equally settled law that there is no bar in law on the proprietor of the firm to transfer his assets, liabilities etc to the other person. In this regard, reference can be made to the judgement of Hon'ble Delhi HC in the case of Ashok Kumar vs Shiv Shankar (supra) and Oscar Tour and Travels (supra) wherein the Hon'ble Delhi HC has observed that there is no bar on the proprietor to transfer the assets, liabilities of the proprietorship concern to some other person.

25. From the perusal of the record and terms of the gift deed it is clear that since a new proprietorship has been registered and new GST no. has been obtained, it can not be said that the proprietorship itself has been transferred rather what is transferred is only the assets and liabilities of the earlier firm, which is permissible in law. It is a settled law that at first the deeds must be construed and given their literal meaning, however, if upon reading a contract there is some absurdity, the court can construct it in light of its object and context of the deed.

26. In this regard, reference can be made to the judgement of Hon'ble SC in the case of Annaya Kocha Shetty (Dead) Thr LRs vs Laxmibai Narayan Satose Since Dead Thr LRs and Ors Civil Appeal No. 84 of 2019 decided on 08.04.2025 KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:01 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.28 of 49 wherein the Hon'ble SC laid down guidelines for construing the contracts as follows:

"16. The circumstances dealing with the dispute between the parties are stated in required detail in the preceding paragraphs. At the outset, let us refer to the ratio of this Court in Provash Chandra Dalui (supra) on the construction of the basic agreement between the plaintiff and the defendant. This Court held that the court must look at the words used in the contract unless they are such that one may suspect that they do not convey the intention correctly. If the words are clear, there is very little the court can do about it. In constructing a deed, looking at the surrounding circumstances and subject matter is legitimate only if the words used are doubtful.

17. The guide to the construction of deeds and tools adopted can broadly be summarised as follows:

17.1 The contract is first constructed in its plain, ordinary and literal meaning. This is also known as the literal rule of construction.

17.2 If there is an absurdity created by literally reading the contract, a shift from literal rule may be allowed. This construction is generally called the golden rule of construction.

17.3 Lastly, the contract may be purposively constructed in light of its object and context to determine the purpose of the contract. This approach must be used cautiously."

27. In the present case, though the gift deed dated 31.07.2020 (Ex. PW-1/1) uses the terms such as 'Transfer and convey the proprietorship firm', but in the facts of the present as discussed above, the same proprietorship firm has not been transferred rather the correct import would be that the donor has only transferred the assets and liabilities of the earlier proprietorship firm as the plaintiff has registered the proprietorship firm afresh with new identity. Thus, the contention of the defendant in this regard is not liable to be accepted and is thus, rejected.

28. Now coming to the merits of the case. The claim of the plaintiff can be bifurcated on the following two heads:

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:06 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.29 of 49 I. That the plaintiff has made an excess/ surplus payment of Rs. 17,31,957/- to the defendant in view of goods being purchased by the plaintiff from the defendant.

II. The defendant is liable to pay a sum of Rs. 17,72,443.50/- in view of goods purchased by the defendant from the plaintiff.

29. On the other hand, the defendant has contended that the defendant has supplied goods worth Rs. 1,89,12,187/- to the plaintiff and even after adjusting all the payment which was to be made against the goods purchased by the defendant from the plaintiff, the plaintiff is liable to pay Rs. 84,43,059.24/- and defendant has nothing outstanding to pay.

30. Thus, both the plaintiff and defendant admit the business relationship between themselves and also that both of them used to sell and purchase the goods from each other. The only dispute from the side of the plaintiff is that he has paid excess of amount to the defendant in lieu of the goods purchased from the defendant and that the defendant has not paid the amount of money for the goods sold by the plaintiff. On the other hand, defendant has contended that the goods worth Rs. 1,89,12,187/- has been sold to the plaintiff and that after making adjustment of the amount payable to the plaintiff (in view of goods purchased by the plaintiff) and amount received from the plaintiff, a sum of Rs. 84,43,059.24/- is outstanding on the plaintiff.

31. Neither the plaintiff nor the defendant has filed any proof of the delivery of the goods or the proof of payment being made to the other side. The ledger filed by the plaintiff is Ex.PW1/3 and the first page of the same is regarding the sales made by the plaintiff to the defendant. The next two

pages are supplier ledger and are regarding the purchases made by the plaintiff and the payment made by the plaintiff to the defendant.

KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:10 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.30 of 49 The plaintiff thus, has not maintained a single ledger but is maintaining two separate ledgers, one as customer ledger and the other as supplier ledger. On the other hand, the defendant is maintaining a single ledger Ex.DW1/3 regarding the sales as well as the purchase made by them from the plaintiff and the same also reflects the payments received from the plaintiff.

32. Now it would be pertinent to compare the plaintiff's ledger (Ex. PW1/3) and Defendant's ledger (Ex. DW1/3) qua the goods sold by the plaintiff to the defendant as well as look into the invoices Ex.PW1/4, filed by the plaintiff.

PLAINTIFF'S LEDGER DEFENDANT'S STATUS LEDGER (Ex.PW1/3) (Ex.DW1/3) Sr.No. Invoice no. Amount Invoice no. Amount Whether the and Date (Rs) and Date (Rs) entries correspond

1. 52450 dt 548095.51 52450 dt. 548095.01 The date of 21.07.2018 25.07.2018 invoice does not match. Amount is (Part of almost same.

Ex.PW1/4)

2. 54879 dt. 126515.34 54879 dt. 135585.75 The date and 26.07.2018 27.07.2018 amount of invoice do not (Part of match Ex.PW1/4)

3. 56812 dt. 256179.14 56812 dt. 256182.00 The amount of 31.07.2018 31.07.2018 invoice does not match, but is (Part of almost same.

Ex.PW1/4)

4. 56823 dt. 471995.60 00186 dt. 471997.00 Amount is almost same.

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:15 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.31 of 49 31.07.2018 06.08.2018 Invoice number does not match.

(Part of
Ex.PW1/4)

(it seems
purchase
order
number is
mentioned
instead of
invoice
number by
the
defendant)

5.	63638 dt. 14.08.2018	369657.91	63638 dt. 31.08.2018	36965
	(Part of Ex.PW1/4)			

33. The stand of the plaintiff is that he has sold goods worth amount as aforesaid and has raised five invoices (Ex.PW1/4, colly). From the ledger of the defendant also, only five entries pertain to the purchase from plaintiff and also for almost similar amounts. Thus, the defendant admits that he has made purchase from the plaintiff at five instances and the ledger of the defendant also reflects five purchases, but the defendant has not filed copy of the invoices of purchase made by him, on record. Once the plaintiff had filed copy of the invoices (Ex.PW1/4) along with the plaint, then if the defendant's plea was that the amount of the invoices was different than what has been filed by the plaintiff, then the onus had shifted upon the defendant and the defendant should have filed copy of invoices which they had received from the plaintiff along with the goods. As the defendant has not filed KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:21:21 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.32 of 49 copy of any invoices regarding the goods purchased by them from the plaintiff, the invoices filed by the plaintiff are taken to be correct. Also, except for one invoice dt. 26.07.2018, where the amount of the invoice is significantly different, in all the other invoices, the amount as stated by the defendant and as stated by the plaintiff is almost similar. Thus, it can be said that the defendant admits that the plaintiff has supplied goods against 5 invoices for the cumulative amount of said invoices which is similar to what is claimed by the plaintiff.

34. Now coming to the payment made by the plaintiff to the defendant, and comparing the entries in the ledger of plaintiff (Ex. PW1/3) and defendant (Ex. DW1/3) respectively, in this regard:-

PLAINTIFF'S LEDGER DEFENDANT'S STATUS LEDGER (Ex.PW1/3) (Ex.DW1/3)
Sr. Payment Amount Payment dt. Amount Whether the No. dt. (Rs.) (Rs.) entries
correspond?

1. 02.01.2018 5,00,000 02.01.2018 500000 The entries correspond
2. 04.01.2018 2,00,000 04.01.2018 200000 The entries correspond
3. 05.01.2018 3,00,000 05.01.2018 300000 The entries correspond
4. 20.01.2018 3,00,000 20.01.2018 300000 The entries correspond

5. 03.02.2018 3,00,000 03.02.2018 300000 The entries correspond

6. 23.02.2018 2,00,000 23.02.2018 200000 The entries correspond

7. 23.02.2018 3,00,000 23.02.2018 300000 The entries KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:27 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.33 of 49 correspond

8. 05.03.2018 3,00,000 05.03.2018 300000 The entries correspond

9. 21.03.2018 2,00,000 21.03.2018 200000 The entries correspond

10. 02.06.2018 1,00,000 02.06.2018 100000 The entries correspond

11. 14.06.2018 1,00,000 14.06.2018 100000 The entries correspond

12. 20.08.2018 2,00,000 20.08.2018 200000 The entries correspond

13. 25.08.2018 1,87,608 24.08.2018 187608 The entries correspond

14. 18.10.2018 8,00,000 17.10.2018 800000 The entries correspond

15. 27.10.2018 2,00,000 27.10.2018 200000 The entries correspond

16. 27.10.2018 2,00,000 27.10.2018 200000 The entries correspond

17. 02.11.2018 10,00,00 02.11.2018 1000000 The entries 0 correspond

18. 02.11.2018 20,00,00 02.11.2018 2000000 The entries 0 correspond

19. 05.11.2018 3,00,000 05.11.2018 300000 The entries correspond

20. 05.11.2018 5,00,000 05.11.2018 500000 The entries correspond

21. 05.11.2018 5,00,000 05.11.2018 500000 The entries correspond KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:21:33 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.34 of 49

35. It is also pertinent to mention here that as per ledger of the defendant there are other entries as well which reflects the fact of cheques being bounced on 07.12.2017, 16.12.2017, 28.09.2018, 01.10.2018, 19.12.2018, 23.01.2019 & 23.01.2019.

Therefore, from the perusal of the above said comparison, it is clear that the fact of payment being made by the plaintiff is also acknowledged by the defendant through its ledger and there is absolutely no dispute with regard to the total payment made by plaintiff to defendant.

36. It is also pertinent to mention here that the defendant has nowhere submitted that payment has been made by them to the plaintiff. Rather, the defendant, in their WS, have stated that the Rs. 84,43,059.24/- is outstanding upon the plaintiff after adjusting the amount paid by the plaintiff and also the amount of goods purchased by the defendant from plaintiff. The relevant cross of DW-1 with respect to the non payment by the defendant is as follows:

"Ques. How much total payment you have received from M/s Goel Medicos?

Ans. The total payment received by the defendant from M/s Goel Medicos is to the tune of Rs.87,00,000/- approximately. (Vol. The same was against the total sale of Rs.1,89,00,000/- approximately made by the defendant company to the plaintiff company).

The defendant company has purchased and received the goods worth approximately around Rs.17 lakhs something from M/s Goel Medicos. (Vol. This amount of Rs.17 lakhs has been adjusted against the sales made by the defendant company to M/s Goel Medicos).

It is correct that defendant company has not made any payment to M/s Goel Medicos against the purchases made by and goods received by the defendant company from M/s Goel Medicos (Vol. Because after the adjustment of the amount of purchases an amount of Rs.84,00,000/- is recoverable from M/s Goel Medicos regarding the sale made by us to M/s Goel Medicos)."

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:38 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.35 of 49

37. So, to adjudicate this issue, what requires to be determined is whether the defendant has sold goods worth Rs. 1,89,12,187/-. In this regard, the defendant has contended that the defendant has raised as many as 19 invoices against the plaintiff out which the plaintiff has made payment of 9 invoices and only 10 invoices are remaining outstanding. The details of the said 10 invoices has been set out in para-34 of preliminary submissions of the WS filed by the defendant. The defendant in para-37 has also mentioned about 7 invoices against which he has admittedly received the payments. The details of the remaining two invoices have not been given in the entire WS. Also, the defendant has not filed the copy of remaining 9 invoices on record and have only filed the following documents:-

Invoices from 31.08.2018 to 06.11.2018 (Ex. DW1/2) (A1 to A10) Ledger Account statement (Ex. DW1/3) Copy of cheques issued by the plaintiff to the defendant. (Ex. D1)

38. Thus, to check the transactions between the parties, it would be pertinent to compare the ledger account of both the parties which are exhibit Ex.PW-1/3 (filed by plaintiff) (supplier ledger) and Ex.

DW-1/3 (filed by defendant), regarding the alleged sales made by defendant to the plaintiff.

PLAINTIFF'S LEDGER DEFENDANT'S LEDGER STATUS Sr. Invoice No Invoice Invoice No. Invoice Whether No. & Date Amount (Rs) and Date Amount both the entries corresponds KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:43 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.36 of 49 or not

1. 1204 dt. 9,50,284.00 1204 dt 9,50,284.00 Yes 31.10.17 31.10.2017
2. 1245 dt 12,06,149.00 1245 dt. 12,06,148.00 Yes 09.11.2017 09.11.2017
3. -- -- 1320 dt. 10,68,047.00 No 22.11.2017
4. -- -- 1360 dt. 8,05,901.00 No 28.11.2017
5. -- -- 1392 dt. 9,28,609.00 No 30.11.2017
6. -- -- 0597 dt. 10,39,051.00 No 25.08.2018
7. -- -- 0603 dt. 18,97,620.00 No 29.08.2018
8. -- -- 0601 dt 11,11,756.00 No 29.08.2018
9. -- -- 0613 dt. 11,46,894.00 No 30.08.2018
10. -- -- 0620 dt. 10,39,844.00 No 31.08.2018 (Ex.DW1/2) (A1)
11. -- -- 0641 dt. 1,73,802.00 No 04.09.2018 (Ex.DW1/2) (A2)
12. -- -- 0639 dt. 1,46,076.00 No 04.09.2018 (Ex.DW1/2) (A3)
13. -- -- 0638 dt. 3,51,647 No KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:21:49 Date: 2026.03.30 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.37 of 49 04.09.2018 (Ex.DW1/2) (A4)
14. 0657 dt. 1,63,147.00 0657 1,63,146.00 Yes 08.09.2018 dt.08.09.2018 (Ex.DW1/2) (A5)
15. 674 dt. 9,15,407 674 dt. 9,15,406 Yes 14.09.2018 14.09.2018 (Ex.DW1/2) (A6)
16. -- -- 0687 dt. 12,23,969.00 No 19.09.2018 (Ex.DW1/2) (A7)

17. -- -- 0709 dt. 10,23,322.00 No 27.09.2018 (Ex.DW1/2) (A8)

18. 810 dt. 13,50,948 810 13,50,950 Yes 03.11.2018 dt.03.11.2018 (Ex.DW1/2) (A9)

19. 816 dt. 23,69,716 816 dt. 23,69,715 Yes 06.11.2018 06.11.2018 (Ex.DW1/2) (A10)

39. Thus, as per the ledger of the defendant, he had sold goods to the plaintiff vide 19 invoices whereas as per the plaintiff, they had purchased goods from defendants only against 6 invoices. The defendant has filed the copy of the invoices on record which are Ex.DW1/2(A1 to A10). The onus of proving that the defendant had sold the goods worth Rs.1,89,12,187/- to the plaintiff was upon the defendant, but the KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:21:55 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.38 of 49 defendant, for the reasons best known to them, has not even filed copy of all the 19 invoices. When the plea of the defendant was that they had sold goods to the defendant vide 19 invoices, then it was expected of the defendant to have at least filed copy of all the 19 invoices on record. In view of the fact that the defendant has not filed copy of all the invoices on record, an adverse presumption is also liable to be drawn against them.

40. Moreover, the defendant during the cross examination of the plaintiff's witness (PW-1) confronted him with the GST record of the defendant company for the invoices raised in the month of November 2017 and August 2018, September 2018 and November 2018 alongwith declaration by way of Affidavit on behalf of defendant company under Order XI rule 6 CPC r/w Section 61 and 63 BSA, 2023. However, this was objected to by the counsel for the plaintiff on the ground that these documents were not filed by the defendant along with WS and also on the grounds of admissibility and relevancy. The objection of the ld. counsel was noted and was to be decided later on.

41. In this regard, the law on the issue is no more res integra. The Hon'ble SC in the case of Mohd. Abdul Wahid vs Nilofer and Anr Civil Appeal No. 8146 of 2023 decided on 14.12.2023 has held that documents can be produced during cross examination to confront either the witness or the party. The relevant observation of the Hon'ble SC is as follows:

"26. To conclude the issue at hand- The freedom to produce documents for either of the two purposes i.e. cross examination of witnesses and/or refreshing the memory would serve its purposes for parties to the suit as well. Additionally, being precluded from effectively putting questions to and receiving answers from either party to a suit, with the aid of these documents will put the other at risk of not being able to put forth the complete veracity of their claim- thereby fatally compromising the said proceedings. Therefore, the proposition that the law differentiates between a party to a KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:02 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.39 of 49 suit and a witness for the purposes of evidence is negated.

....

32. In light of the above discussion, and the answer in the negative to the first question before this court, meaning thereby that there is no difference between a party to a suit as a witness and a witness simpliciter- the second issue in this appeal, in view of the provisions noticed above, production of documents for both a party to the suit and a witness as the case may be, at the stage of cross-examination, is permissible within law."

42. Moreover, Order XI Rule 1(1)(7)(c)(i) of the CPC, as applicable to Commercial Courts, the defendant can bring a document to cross examine a witness. Order XI Rule 1(7)(c)(i) is re-produced as follows:

"(7) The defendant shall file a list of all documents and photocopies of all documents, in its power, possession, control or custody, pertaining to the suit, along with the written statement or with its counterclaim if any, including-

.....

(c) nothing in this Rule shall apply to documents produced by the defendants and relevant only-

(i) for the cross-examination of the plaintiff's witnesses,...."

Thus, in view of above discussion, the objection of the counsel for the plaintiff is not sustainable, as the defendant could have produced the documents during the cross-examination of plaintiff's witnesses.

43. The Defendant has filed the GST Return (Mark PW1/X1) to show that the defendant has paid GST on the alleged 19 invoices from 2017 to 2018. Perusal of Mark PW1/X1 reveals that it does not provide for invoice no.1204 dated 31.10.2017. However, it would not make any difference as the same is duly reflected in the ledger of the plaintiff and thus, is being admitted by the plaintiff.

KIRAN BANSAL BANSAL Date:

2026.03.30 16:22:06 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.40 of 49

44. The relevant cross examination of the PW-1 with respect to GST documents Mark PW1/X1 is as follows:

"Ques. Who maintains the GST Record/GST Account of the M/s. Goel Medicos during the time period 2017 to 2019 and from 2020 to 2024?

Ans. My CA used to do it.

Ques. When an invoice is raised by a party upon the plaintiff such invoices are reflected in GSTR 2A/2B as the case may be. Are you aware of the working of GSTR 2A/2B. Ans. Yes, I am aware.

Ques. Is it correct to say that when invoices were raised by defendant company upon Goel Medicos, it would have reflected in the GSTR 2A/2B of Goel Medicos?

Ans. Yes, (Vol. We used to take credit input of such invoices which were in our Ledger and which goods were purchased by our company. We do not claim credit input of the invoices which are not reflected in our ledger and against which the goods were not purchased by us).

Ques. Is it correct to say that all the 19 invoices raised by the defendant company upon Goel Medicos would be reflected in the GSTR 2A/2B of the Goel Medicos.?

Ans. I cannot say about 19 invoices. (Vol. I had taken credit input of only 6 invoices).

Ques. At this stage, the witness is confronted with the GSTR record of the defendant company for the invoices raised in the month November, 2017 and August, 2018 September, 2018 and November, 2018 along with declaration by way of affidavit on behalf of defendant company under Order XI Rule 6 CPC read with Section 61 and 63 of BSA, 2023. Is it correct that all these invoices raised in the month of November, 2017, August, 2018, September, 2018 and November, 2018 as per GSTR1 of defendant are reflected in GSTR 2A/2B of Goel Medicos?

(Objected to by ld. counsel for plaintiff on the ground that these documents are not filed along with WS by the defendant and the defendant cannot place these documents on record at this stage without specific application under Order XI Rule 1 (10) CPC. Also, objected regarding admissibility and relevancy).

Objection to be decided later on.

The document is marked as Mark PW1/X1 (colly) for identification purposes.

Ans. I cannot comment upon the GSTR1 of the defendant as the document does not pertain to plaintiff.

At this stage, the document Mark PW1/X1 (colly) is shown to the witness. The witness states that he cannot comment whether the GST number at points A in Mark PW1/X1 (colly) belongs to him or not as he does not remember the GST number.

Ques. What is the process that you undertake if allegedly a false invoice is raised against the plaintiff which is also reflected in your GSTR 2A/2B.

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:11 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.41 of 49 Ans. We take credit input of only the genuine invoices as per our ledger and do not take any other step regarding the fake invoices. They just keep reflecting in our GSTR 2A / 2B."

45. It is pertinent to mention here that the defendant has not filed any document to prove the delivery of goods vide these invoices, so as to say E-way bill, Transport receipts etc., to show that the goods were delivered to the plaintiff. Moreover, the filing of the GST return by the defendant is only for the purposes of taxation and it can not be said to be the proof of delivery of the goods to the plaintiff. Though, the plaintiff has also not filed any proof regarding delivery of goods but the defendant has admitted receiving of goods from the plaintiff against 5 invoices and therefore, non-filing of any document regarding delivery of goods by the plaintiff to the defendant does not affects the case of the plaintiff. However, as the plaintiff has not admitted delivery/ receiving of the goods from the defendant, therefore, the defendant should have proved the delivery of the goods to the plaintiff by filing relevant documents, which the defendant has failed to prove. The defendant has also not filed any counter-claim in regard to his claim that he is entitled to approx. 84 lacs from the plaintiff.

46. The Defendant has also summoned a witness from GST department i.e. DW-2. As per Ex. DW-2/4, the GSTR2B for FY 2017-18 and 2018-19 is not reflected in the GST Portal and GSTR 9 for FY 2018-19 has not been filed by the taxpayer i.e. Plaintiff. GST Returns on its own not sufficient to prove the delivery of goods as no information as to claiming of ITC can be deduced from the said documents. Thus, the case would have to be determined only on the basis of the oral testimonies of the witnesses and documents filed by both the parties.

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:16 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.42 of 49

47. PW-1 in his cross has stated as to how and to whom the orders were placed and that payment was made through online mode. The relevant cross of the PW-1 is as follows:

"Q. During the time period 2016-2020, who used to place order for the medicines and pharmaceutical products on behalf of M/s Goel Medicos ?

A. I used to place orders and some other staff also used to place orders. I cannot tell the name of the staff member as the staff keeps on changing.

I used to place purchase orders on phone. Orders to the defendant were also placed telephonically. The orders were placed upon the employee of the defendant company some of the names of such employees is Sachin, Harish and there used to be other also. The orders were delivered by the defendant company either on the same day or within a couple of days. The staff of the defendant company used to deliver the goods. Payments were made through online mode. No cash transaction was done between the parties. M/s Goel Medicos have not made any payment to the defendant through

cheques or DD.

.....

I used to make payments to the defendant company through RTGS only. The payments were made either by the accountant or by me. While the goods were delivered by the defendant company to M/s Goel Medicos, a copy of invoice was also given to M/s Goel Medicos and the plaintiff. We used to maintain hard-copy records of the invoices received from the defendant company. I have not filed these records along with my plaint. I am not sure if the records are still available but I can check and produce the same if available. Q. When the goods were received by you for M/s Goel Medicos from the defendant, did you give any acknowledgment to the defendant company, if so do you have any proof to substantiate the same ?

A. We used to give acknowledgment to the defendant company either on the acknowledgment voucher or on the photocopy of the invoice. We do not have the proof of such acknowledgment as it was given to the defendant company. (Vol. it was defendant company who had to maintain such records)."

48. It is also pertinent to mention here that the purchase orders were placed by any of the employees of the defendant and PW-1 has also deposed about the specific name of Mr. Harish, among others, who used to place purchase orders. The relevant part of the cross examination of PW-1 is as follows: Digitally signed KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:20 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.43 of 49 "Q. Who used to place purchase orders on behalf of the defendant company for purchasing the goods from M/s Goel Medicos? A. Any of the employees of the defendant company would place the purchase orders.

Q. Can you tell the name of the said employees of the defendant company?

A. One of them was Harish but there were others also whose name I do not remember.

Q. Who used to deliver goods on behalf of M/s Goel Medicos to defendant company, kindly also tell the name of such person? A. Any of the staff of the M/s Goel Medicos would deliver the goods to defendant. However, I do not remember the name of such person.

Q. Did M/s Goel Medicos take acknowledgment of the receipt of goods by the defendant company?

A. Yes.

Q. Have you placed such acknowledgment on record? A. No. Q. Can you bring such acknowledgment?

A. I can check. Vol. sales invoices were computer generated in addition the sales invoices were also sent to the defendant by email."

.....

"It is wrong to suggest that the defendant company has given any acknowledgement to the plaintiff for the goods supplied by the plaintiff to the defendant. Ques. Is it correct that you do not have any acknowledgement from the defendant company or any email sent by you to the defendant company for the goods supplied by you to the defendant company in your power, possession and custody? Ans. The invoice is generated by the software and has been emailed to the defendant. I cannot say whether the copy of the email has been filed on record or not.

It is wrong to suggest that no such email was sent and therefore, I have not filed the same on record."

49. Moreover, the plaintiff has admitted the purchase of the goods qua the 6 invoices and has specifically denied the factum of purchasing the goods by way of remaining 13 invoices. The relevant cross of the PW-1 is as follows:

"It is correct to say that products were purchased by the plaintiff from the defendant company in respect of the invoices admitted.

At this stage, the witness is confronted with Ex.PW1/3 (colly). M/s. Goel Medicos have purchased the goods from the defendant company from October, 2017 to March, 2018. We had received six invoices from the defendant company for the goods purchased by us for goods worth KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:25 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.44 of 49 approximately Rs.69,00,000/-.

It is incorrect to suggest that the defendant had sold goods worth Rs.1,89,12,187/- to Goel Medicos by way of 19 Invoices from the time period October, 2017 to November, 2018."

50. The payments made by the plaintiff on several occasions has been acknowledged by the defendant in their ledger Ex.DW1/3. Moreover, with respect to the payments being made by the plaintiff, the PW-1 has deposed as follows:

"We used to telephonically communicate to the defendant company about the payments made to them for the goods delivered. I and sometimes my other staff members used to make these phone calls to the representative of the defendant company, namely, Sachin, Harish, amongst others."

51. The PW-1 has also explained about the fact of excess payment being made by the plaintiff to the defendant. The relevant cross of PW-1 is as follows:

Ques. Is it correct to say that no written proof of any payment for any invoice was shared by you with the defendant company? Ans. The payments were made through online transfer, hence, there was no need for any separate written proof.

All the payments to the defendant company were made with my consent which were initiated by staff members of Goel Medicos as the OTP for the transactions used to come on my phone number. I along with 4 - 5 employees of Goel Medicos used to maintain accounts of Goel Medicos."

The payment made by the plaintiff is also reflected in the ledger of the defendant Ex.DW1/3, as discussed above.

52. Thus, the onus was upon the defendant to show that goods of above said worth were delivered by the defendant to the plaintiff. In this regard, the defendant has confronted the plaintiff with their GST return showing that the GST has been paid on the said invoices. As observed above, payment of GST amount is alone not sufficient to prove the delivery.

KIRAN by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:29 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.45 of 49

53. With respect to the goods delivered vide invoices, the plaintiff has deposed that the he used to take input tax credit of only those goods for which the goods were actually received by him and for those goods which were not delivered, they used to not avail the input tax credit. The relevant part of the cross of PW-1 is as follows:

"Ques. When a invoice is raised by a party upon the plaintiff such invoices are reflected in GSTR 2A/2B as the case may be. Are you aware of the working of GSTR 2A/2B. Ans. Yes, I am aware.

Ques. Is it correct to say that when invoices were raised by defendant company upon Goel Medicos, it would have reflected in the GSTR 2A/2B of Goel Medicos?

Ans. Yes, (Vol. We used to take credit input of such invoices which were in our Ledger and which goods were purchased by our company. We do not claim credit input of the invoices which are not reflected in our ledger and against which the goods were not purchased by us).

Ques. Is it correct to say that all the 19 invoices raised by the defendant company upon Goel Medicos would be reflected in the GSTR 2A/2B of the Goel Medicos.?

Ans. I cannot say about 19 invoices. (Vol. I had taken credit input of only 6 invoices)."

54. Therefore, in view of above discussion, it is clear that the defendant has not been able to discharge its onus of proving the sale and delivery of said goods to the plaintiff. Furthermore, it is clear admission on the part of the defendant that they have never made any payment to the plaintiff.

55. Thus, the defendant has failed to prove the said sale to the plaintiff. On the other hand, payment being made by the plaintiff and sale of the goods by the plaintiff has been duly proved from the testimony of the PW-1, DW-1 and the documents of defendant itself.

56. The defendant has relied upon its ledger to substantiate its claim. However, it is pertinent to mention here that the said ledger was never confirmed by the plaintiff as has been deposed by DW-1. The relevant cross of DW-1 is as follows:

"It is correct that defendant company has never got the ledger KIRAN Digitally signed by KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:34 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.46 of 49 Ex. D3 confirmed from M/s Goel Medicos."

57. Moreover, for the ledger to be relevant in writing it has to be regularly kept in the course of business and above all the entries there must be real and accurate. In this regard, it is pertinent to mention here that as per ledger of the defendant, the defendant has made an entry on 08.09.2018 with particular mentioned as "Sales - SO/DEL/18-19/00663 BEING DRUGS SOLD TO BRD RETAIL DITRIBUTORS PVT LTD (MUMBAI) AGST SO/MUM/18-19/00407 INV NO. MUM/18-19/0407 ON DT. 11.09.2018" against which an amount of Rs. 1,63,146.00 is mentioned. However, it is pertinent to mention here that the entry made in the ledger of the said date is not correct as on 08.09.2018, as per invoices filed by the defendant (Ex. DW-1/2 (A5)), an invoice no. DEL/18-19/0657 for an amount of Rs. 1,63,147.20/- was issued, which is not correctly mentioned in the ledger. The relevant cross of DW-1 is as follows:

"At this stage, witness is shown the Invoice Ex.DW1/2 (A5) and is asked Ques. I put it to you that the Invoice Ex.DW1/2 (A5) is not mentioned in the Ledger Ex.DW1/3, What you have to say? Ans. It seems that Ex.DW1/2 (A5) is mentioned at point A of Ledger Ex.DW1/3, however, the narration of the same is wrong. (Vol. The same seems to be a typographical error).

It is wrong to suggest that there are other typographical error in the ledger.

It is correct that the value of the Invoice Ex.DW1/2 (A5) is Rs.1,63,147.20 while the entry at point A of Ledger Ex.DW1/3, reflects the value of the Invoice as Rs.1,63,146/- (Vol. However, the Sales Order Number is same in both i.e. the Ledger Ex.DW1/3 as well as Invoice Ex.DW1/2 (A5)).

Ques. Please specify the typographical error in Ledger at point A in Ledger Ex.DW1/3?

Ans. Amount is correct, narration is not correctly stated. Correct Invoice Number along with correct party name should have been mentioned in the Ledger Ex.DW1/3."

58. Apart from this, the ledger also suffers from other infirmities i.e. the ledger mentions on 06.08.2018 that goods worth KIRAN Digitally signed by KIRAN BANSAL BANSAL 16:22:41 +0530 Date: 2026.03.30 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.47 of 49 Rs. 4,71,997.00 were purchased from plaintiff vide invoice "Purchase

- PO/DEL/18-19/00186 being Drugs Purchase from Goel Medicos Agst DPAJ/2018/0160 Inv No. PO/DEL/18-19/000186 Dt. On 06.08.2018". The invoice raised by the plaintiff is invoice no.56823 for the said amount (part of Ex.PW1/4). It seems that defendant has mentioned purchase order number instead of invoice number in the ledger. Therefore, in view of the above said infirmities, the ledger can not be said to be reliable for the purpose of proving the defence of the defendant.

The defendant have thus, measurably failed to prove that they have made a sale of goods worth 1,89,12,187/- to the plaintiff. On the other hand, the plaintiff has sold goods worth Rs.17,72,443.50/- to the defendant vide invoices Ex.PW1/4 and has also made an excess payment of Rs.17,13,957/-. The plaintiff is thus, entitled to money decree of Rs. 35,04,400.50/- against the defendant.

In view of above discussions, the issue no. 1 and 2 are decided accordingly.

ISSUE NO. III. Whether the plaintiff is entitled to any interest? If so, at what rate and for which period? OPP.

59. The plaintiff has claimed pendente lite and future interest @ 12% p.a. on the principal amount of Rs. 35,04,400.50/- The plaintiff has not claimed any pre-suit interest and has neither quantified pre-suit interest as per Order VII Rule 2A CPC and nor has paid any court fees upon it. Thus, it seems that the plaintiff has forgone its claim of pre-suit interest and is thus, not entitled to it.

60. As far as pendente lite and future interest is concerned, the plaintiff has argued that he be entitled to interest @ 12% per annum. However, it is not proved that there was a agreement between the parties qua the rate of interest. Thus, the plaintiff could KIRAN KIRAN BANSAL BANSAL Date: 2026.03.30 16:22:46 +0530 Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.48 of 49 not be awarded interest at such exorbitant rate of interest.

61. However, since the plaintiff is entitled to principal amount of Rs. 35,04,400.50/- and the defendant has not paid the said sum of money, thus, the plaintiff is entitled to interest at reasonable rate. Therefore, the plaintiff is entitled to pendente lite and future interest @ 6% p.a. on Rs. 35,04,400.50/-.

Issue no. 3 is accordingly decided in favour of the plaintiff and against the defendant.

ISSUE NO. IV. Relief.

63. In view of above discussion, the suit of the plaintiff is decreed in favour of the plaintiff and against the defendant for a sum of Rs. 35,04,400.50/- along with pendente lite and future interest @6% p.a. on the principal amount of Rs. 35,04,400.50/- wef 30.01.2023 (date of institution) till its realization. The cost of the suit to the extent of the court fees is also awarded to the plaintiff.

KIRAN by KIRAN BANSAL BANSAL 16:22:52 Date: 2026.03.30 +0530 Announced in the open court (Kiran Bansal) on 30.03.2026 District Judge, Commercial Court-02 Shahdara, Karkardooma Delhi/ 30.03.2026.

Civil suit (comm) no. 44/2023 Sh. Basant Goel Vs. Health Care at Home India Pvt. Ltd. Page No.49 of 49